

		or correcting the award. Respondents did not oppose the petition or file a petition to vacate or correct the award. The court therefore GRANTS the petition subject to Petitioners clarifying the correct amount of the award and the judgment to be entered. The court notes the sum total in the award itself was \$197,957.73. The petition states Respondents are to pay \$185,072.73 to Petitioners (Petition §§ 3(b) and 8(b)(1)), but also provides sums totaling \$187,927.73. (Petition § 8(b)(4).) The court will enter the total following a discussion. Counsel for Petitioners to give notice.
4.	<i>Smith vs. Interinsurance Exchange of the Automobile Club</i> 2026-01542336	Before the court is the second petition to compel arbitration filed by petitioner Mark Smith (Petitioner) seeking an order compelling respondent Interinsurance Exchange of the Automobile Club (Respondent) to arbitrate Petitioner's pending underinsured motorist claim with Respondent. <u>Petitioner's counsel, Mark B. Plummer, and Respondent's counsel, Willis J. King, III, are ordered to appear for the hearing to discuss this matter. Remote appearances are acceptable.</u> Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless it determines: (a) the right to compel arbitration has been waived by the party seeking to compel arbitration, (b) grounds exist for rescission of the agreement to arbitrate, or (c) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) Petitioner contends Respondent has refused to participate in, or schedule, binding arbitration. Respondent denies these claims. Respondent's counsel attests Respondent has never refused to arbitrate Petitioner's UIM claim and has agreed the claim should proceed to arbitration pursuant to the applicable insurance policy. (King III Decl., ¶ 2.) Furthermore, on May 19, 2026, Respondent's counsel sent an email to Petitioner's counsel reiterating Respondent's willingness to proceed with arbitration, proposing multiple arbitrators and requesting the parties simply schedule the arbitration and avoid further motion practice or delay, but

		Petitioner's counsel did not respond. (King III Decl., ¶¶ 11-14; Ex. B.) Petitioner's reply does not address this email. As stated above, all counsel are ordered to appear for the hearing to discuss the current status of the arbitration and why it has not been scheduled.
5.	<i>Firas Mina Elias Aldayyat vs. Mercury Insurance Company</i> 2025-01480905	Before the court is they motion by petitioner Firas Mina Elias Aldayyat (Petitioner) seeking an order compelling the deposition of non-party Robert Moghadam, Esq. (Mr. Moghadam) in connection with Petitioner's underinsured motorist claim currently pending with respondent Mercury Insurance Company. For the reasons set forth below, the motion is GRANTED. (Code Civ. Proc., § 1987.1(a).) Petitioner seeks to compel Mr. Moghadam's deposition testimony pursuant to a deposition subpoena for personal appearance issued by Petitioner on March 24, 2026. Mr. Moghadam filed an untimely opposition in which he indicated he opposes the motion only to the extent it seeks an unqualified order compelling him to testify without regard to the attorney-client privilege. Petitioner does not appear to be seeking such an order. Petitioner seeks an order directing compliance with the deposition subpoena and even indicated any concerns regarding privilege should be addressed at the deposition by way of objection as to the particular question and content. Mr. Moghadam does not dispute his testimony pertaining to non-privileged matters is relevant to the pending underinsured motorist claim. Moreover, Mr. Moghadam did not serve any formal objection to the deposition subpoena, nor did he file a motion to quash the subpoena. Mr. Moghadam acknowledges he previously represented Petitioner and Dina Nimri in connection with the underlying automobile accident. He does not dispute he may have knowledge of non-privileged, relevant information. No basis has been established for the outright refusal to appear for deposition. Accordingly, the motion is GRANTED. Mr. Moghadam is ordered to appear for deposition within 30 days of service of notice of this order. Although all parties acknowledge the attorney-client privilege likely will apply to prevent responses to certain questions, the court cannot rule any a prospective privilege objection in a vacuum. Indeed, without a specific question(s) and a factual context, the court cannot rule what specific information is or is not privileged. Accordingly, Mr. Moghadam may assert objections to particular questions based on the attorney-client privilege